

25SMCV00855 25SMCV00855

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Case Number: 25SMCV00855 Hearing Date: July 2, 2026 Dept: P

Tentative

Ruling

Leonard

J. Ruebe v. General Motors, LLC, Case No. 25SMCV00855

Plaintiff's

Motion for Attorneys' Fees

Hearing

Date: July 2, 2026

Background

This is a

lemon law case. Plaintiff Leonard J. Ruebe ("Ruebe") brought this action under the Song-Beverly Act against Defendant General Motors ("GM") in 2025, alleging GM's failure to repair or repurchase Ruebe's 2024 Cadillac CT4-V following multiple attempts to repair the vehicle's transmission issues. (Complaint, ¶ 11.)

On February

18, 2025, Ruebe filed the initial complaint.

On March

9, 2025, GM answered.

On February

4, 2026, Ruebe filed a notice of settlement, and set an OSC re: Dismissal for April 6, 2026. On April 6, 2026, the Court continued the OSC re: Dismissal to June 4, 2026, because Plaintiff's counsel failed to appear at the hearing. On June 4, 2026, the Court continued the hearing to July 2, 2026.

Ruebe

filed this motion for attorneys' fees on May 1, 2026. On May 15, 2026, GM filed opposition. On May 21, 2026, Ruebe replied.

Ruebe

seeks a total of \$42,150.23 in attorneys' fees, composed of \$29,431.00 in fees incurred through the filing of this motion, \$3,090.00 for replying to opposition and appearing at the hearing, an additional \$1,030.00 for opposing GM's motion to tax costs, and \$1889.03 in costs, plus a 20% multiplier. (Motion for Attorneys' fees, p. 12.) In opposition, GM argues that because this case was so simple, the Court should reduce Ruebe's counsel's hourly rates. (Opposition, p. 5.) GM also argues that Ruebe's attorneys overbilled for discovery work. (Id. at p. 6.) In reply, Ruebe argues that its billing rates and hours are reasonable and that its billing records are not duplicative.

Motion

for Attorney's Fees

A prevailing buyer in an action for damages and other legal remedies should receive full compensation of reasonable sums expended in pursuit of their claims against manufacturers who failed to comply with the Song-Beverly Act. (Civ. Code § 1794(d).)

"A trial court assessing attorney fees

begins with a touchstone or lodestar figure, based on the 'careful compilation of the time spent and reasonable hourly compensation of each attorney ... involved in the presentation of the case.'" (Christian Research Institute v. Alnor (2008) 165 Cal.App.4th 1315, 1321.) "The reasonableness of attorney fees is within the discretion of the trial court, to be determined from a consideration of such factors as the nature of the litigation, the complexity of the issues, the experience and expertise of counsel and the amount of time involved. The court may also consider whether the amount requested is based upon unnecessary or duplicative work." (Wilkerson v. Sullivan (2002) 99 Cal.App.4th 443, 448.)

Prevailing
Party

The
parties do not contest that Ruebe is the prevailing party.

Reasonable
Rate

Ruebe
requests fees for two attorneys: Mr. Aaron Fhima and Mr. Christopher Banna. (Banna Decl., ¶ 36.) Mr. Fhima is a principle at Neale & Fhima, APC. Mr. Banna is an associate. Mr. Fhima's hourly rate was \$565 in 2025 and is now \$625. (Id. at ¶ 36(a).) Mr. Banna's hourly rate was \$485 in 2025 and is now \$515. (Id. at ¶ 36(b).) Ruebe's billing records also reflect work done by paralegal Cindie Ianni at \$220/hour. One partner, one associate, and one paralegal is reasonable staffing for this case, as it resolved in just over one year with minimal motion practice.

Mr. Fhima
and Mr. Banna's hourly rates are high for a simple matter like this one. Though both are experienced and capable attorneys, \$625 per hour and \$515 per hour is excessive for straightforward consumer protection litigation. \$600 per hour is reasonable for an attorney of Mr. Fhima's experience in consumer litigation. \$450 per hour is reasonable for an associate attorney of Mr. Banna's experience. Ms. Ianni's rate of \$220 per hour is reasonable.

Reasonable
Hours

Ruebe
requests a total of 52.4 hours of attorney and paralegal time on this matter, plus a flat fee of \$3,900 for pre-litigation work. (Danna Decl., Exhibit A.)

GM argues
that the flat fee is impermissible because Ruebe does not provide an explanation of the exact services provided in exchange for this fee. The Court agrees with GM—the description is vague and does not describe with detail what pre-litigation services Ruebe's attorneys provided for this flat fee. The Court denies the pre-litigation fee.

GM also

contends that Mr. Danna's time spent on preparing and reviewing discovery responses should be reduced because Ruebe's discovery requests were boilerplate and the billed time was excessive. GM highlights that Mr. Danna billed 2.5 hours for propounding discovery requests, alongside other entries for 10 hours spent reviewing GM's discovery responses. 2.5 hours for propounding discovery requests is reasonable. In addition to the entries GM highlights, Ruebe's billing records reflect a total of fifteen hours billed for reviewing discovery responses. Since discovery in this case was extremely limited, fifteen hours is excessive. The Court reduces Mr. Danna's hours by 5 hours.

The Court

grants Ruebe fees for Mr. Fhima's work at \$600 per hour for .9 hours of work, for Ms. Ianni's work at \$220 per hour for 1.8 hours of work, and for Mr. Banna's work at \$450 per hour for 47.2 hours of work at \$450 per hour.

Ruebe also

requests fees for 6 hours of attorney time replying to GM's opposition and appearing at the hearing. 6 hours is excessive. The Court grants 3 hours of attorney time for Ruebe's reply and his attorney's appearance at the hearing, at \$450/ hour.

Ruebe also

requests costs of \$1,889.03. GM does not meaningfully oppose Ruebe's requests for costs. Following a review of Ruebe's records, the requested costs are reasonable.

Multiplier

Ruebe

requests a fee multiplier because his attorneys worked on contingency and because they obtained fair results. (Motion for Attorneys' Fees, p. 19.) Multipliers are awarded in complex cases or risky cases taken on a contingency basis. That is not the case here. This matter was straightforward. A multiplier is not warranted.

Conclusion

Plaintiff's

Motion for Attorneys' Fees is GRANTED in the amount of \$25,415.03 (($\450×47.2 hours) + ($\$600 \times .9$ hours) + ($\$220 \times 1.8$ hours) + ($\$450 \times 3$ hours) + \$1,889.03.)